

TIDEWATER MUTUAL INSURANCE COMPANY
Claims Department — 2200 Edison Ave, Fort Myers, FL 33901

November 12, 2024

Margaret A. Calloway
1487 Coronado Pkwy
Cape Coral, FL 33904

Re: Claim No. TWM-CLM-2024-100847
Policy No. TWM-FL-4471-2290
Date of Loss: 09/28/2024
Insured Location: 1487 Coronado Pkwy, Cape Coral, FL 33904

Dear Ms. Calloway:

We have completed our investigation of the above claim. Based on that investigation, Tidewater Mutual Insurance Company must DENY the portion of your claim attributable to water that entered your home from surface water and from the rising canal, and we issue this letter under a full RESERVATION OF RIGHTS.

Your policy contains the following provision under Section I — Exclusions:

"We do not insure for loss caused directly or indirectly by ... Water Damage, meaning flood, surface water, waves, tidal water, overflow of a body of water, or spray from any of these, whether or not driven by wind ... This exclusion applies regardless of any other cause or event contributing concurrently or in any sequence to the loss." (Exclusion 3(b))

Our field inspection and the recorded statement indicate that standing water rose from the adjacent Coronado Canal and entered the dwelling. Loss arising from flood and surface water is excluded under Exclusion 3(b), and the anti-concurrent-causation lead-in bars coverage even where a covered peril (such as wind) contributes to the same loss.

This letter is not a waiver. Tidewater Mutual reserves all rights and defenses under the policy and at law, including the right to deny coverage in whole or in part and to require an Examination Under Oath. To the extent any portion of the roof/wind loss is covered, that portion remains under review.

If you have additional information, please submit it within 60 days.

Sincerely,
Priya Venkataraman
Claims Supervisor, Tidewater Mutual Insurance Company